

11.	26CV0687	DAVID CRAMER VS. EL DORADO COUNTY
MOTION FOR ORDER DECLARING PLAINTIFF A VEXATIOUS LITIGANT		

This matter stems from a Complaint filed by Plaintiff, David Cramer ("Plaintiff"), on March 12, 2026. El Dorado County is named as a defendant and Londres Uso is named as a Real Party in Interest. Plaintiff asserts the following causes of action: 1) Public entity liability for failure to perform a mandatory duty; and 2) Development of a public nuisance.

On May 1, 2026, Defendant, El Dorado County, filed the following:

1. Notice of Motion and Motion for Defendant County of El Dorado for an Order: 1) Declaring Plaintiff a Vexatious Litigant; 2) Entering Prefiling Order; 3) Requiring Plaintiff to Furnish Security; 4) Staying the Case Until Security Furnished; and 5) Warning that Case will be Dismissed if Security Not Furnished (hereinafter "Motion");
2. Request for Judicial Notice in Support of Defendant County of El Dorado's Motion;
3. Declaration of Andrew T. Caulfield in Support of Motion; and
4. Memorandum of Points and Authorities in Support of Motion.

Defendant, El Dorado County ("Defendant"), asserts Plaintiff should be declared a vexatious litigant pursuant to Code of Civil Procedure § 391(b)(1) as he has commenced, prosecuted and/or maintained at least five qualifying "litigations" in pro per in the preceding seven-year period. Defendant provides seven litigations which they allege qualify as qualifying litigations, including:

1. David Cramer v. City of Auburn, et al (Placer County Superior Court, Case No. SCV-0049209);
2. David Cramer v. Auburn Lake Trails Property Owners Association (Third District Court of Appeal, Case No. C099848);
3. David Cramer v. El Dorado County (El Dorado County Superior Court, Case No. 23CV0457);
4. David Cramer v. El Dorado County (Third District Court of Appeal, Case No. C100224);
5. David Cramer v. El Dorado County (Third District Court of Appeal, Case No. C102216);
6. David Cramer v. El Dorado County Superior Court (US District Court, Eastern District of California, Case No. 2:24cv1982); and
7. David Cramer v. Rene Norton (Third District Court of Appeal, Case No. C099714).

Defendant also asserts Plaintiff may be deemed a vexatious litigant under Code of Civil Procedure § 391(b)(2) as he attempts to relitigate causes of action, claims, issues of fact and law, that were determined or concluded by final determination and in favor of the County in case number 23CV0457 and appeal case number C102216.

Defendant seeks Plaintiff furnish a \$65,000 security to compensate the County for estimated reasonable costs and attorney's fees needed to defend the action. In a previous lawsuit and appeal (23CV0457 and C102216), the County incurred and paid \$66,837.36 in attorney's fees and expenses.

An Amended Notice of Motion was filed on May 12, 2026. Plaintiff filed an Opposition on June 26, 2026 and an Amended Opposition was filed July 1, 2026. Defendant filed a Reply on July 2, 2026.

Vexatious Litigant

Code of Civil Procedure § 391(b) provides a vexatious litigant is as a person who does any of the following:

(1) In the **immediately preceding seven-year period has commenced, prosecuted, or maintained in propria persona at least five litigations** other than in a small claims court that have been (i) **finally determined adversely to the person** or (ii) unjustifiably permitted to remain pending at least two years without having been brought to trial or hearing.

(2) **After a litigation has been finally determined against the person, repeatedly relitigates or attempts to relitigate**, in propria persona, either (i) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) **the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined.** (emphasis added)

...

In support of Defendant's request for judicial notice, Defendant provides various court records pertaining to Plaintiff's previous litigation for El Dorado County Superior Court, Case No. 23CV0457, Third District Court of Appeal, Case No. C1002216, Placer County Superior Court, Case No. SCV-0049209, Third District Court of Appeal, Case No. C099848, Third District Court of Appeal, Case No. C100224, US District Court, Eastern District of California, Case No. 2:24cv1982, and Third District Court of Appeal, Case No. C099714. Evidence Code § 452(d) permits judicial notice be taken for records of any court of this state or any court of record of the United States or any state of the United States. Defendant's request for judicial notice is granted.

Plaintiff asserts he should not be considered a vexatious litigant as three of the cases provided by Defendant are appeals which should not be considered separate cases. Such an argument is directly contradictory to existing case law which provides

The term “ ‘[l]itigation’ ” is defined broadly as “any civil action or proceeding, commenced, maintained or pending in any state or federal court.” (§ 391, subd. (a).) **A litigation includes an appeal or civil writ proceeding filed in an appellate court.** (*McColm v. Westwood Park Assn.* (1998) 62 Cal.App.4th 1211, 1216, 73 Cal.Rptr.2d 288; *In re R.H.* (2009) 170 Cal.App.4th 678, 691–692, [88 Cal.Rptr.3d 650].) (emphasis added)

Garcia v. Lacey (2014) 231 Cal.App.4th 402, 406 [180 Cal.Rptr.3d 45, 49]

A litigation is finally determined adversely to a plaintiff if **he does not win the action** or proceeding he began, **including cases that are voluntarily dismissed by a plaintiff.** (*Tokerud v. Capitolbank Sacramento* (1995) 38 Cal.App.4th 775, 779, 45 Cal.Rptr.2d 345; *In re Whitaker* (1992) 6 Cal.App.4th 54, 56, [8 Cal.Rptr.2d 249].) *Id.* At 406-407 (emphasis added). The outcome of each case is below:

1. El Dorado County Superior Court, Case No. 23CV0457: Defendant’s demurrer to Plaintiff’s Fourth Amended Complaint was sustained without leave to amend.
2. Third District Court of Appeal, Case No. C100224: Plaintiff filed a premature appeal in El Dorado County Superior Court, Case No. 23CV0457 then retracted the appeal.
3. Third District Court of Appeal, Case No. C1002216: Plaintiff filed an appeal in El Dorado County Superior Court, Case No. 23CV0457 and the appellate court affirmed. Plaintiff’s petition for rehearing was denied.
4. Placer County Superior Court, Case No. SCV-0049209: Plaintiff filed a dismissal without prejudice.
5. Third District Court of Appeal, Case No. C099848: Plaintiff filed an appeal of the trial court’s order in Placer County Superior Court, Case No. SCV-0049209 and the appellate court affirmed. Plaintiff’s petition for rehearing was denied.
6. US District Court, Eastern District of California, Case No. 2:24cv1982: the Court dismissed the action.
7. Third District Court of Appeal, Case No. C099714: Plaintiff abandoned the appeal.

The Court finds that Plaintiff has commenced at least five litigations in the immediately preceding seven-year period which have had an adverse final determination against Plaintiff. The Court accordingly finds Plaintiff is a vexatious litigant under Code of Civil Procedure § 391(b)(1).

The Court further finds that Plaintiff is a vexatious litigant under Code of Civil Procedure § 391(b)(2) as he is attempting to relitigate the same cause of action for public entity liability for failure to perform a mandatory duty, which was the same cause of action and issues as in El Dorado County Superior Court, Case No. 23CV0457 and Third District Court of Appeal, Case No. C1002216. *See First Western Development Corp. v. Superior Court* (1989) 212 Cal.App.3d 860 (holding an unsuccessful defendant who filed five lawsuits, three of which attempted to

relitigate issues previously raised, was a “vexatious litigant” under the Code of Civil Procedure § 391(b)(2).).

Prefiling Order

Code of Civil Procedure § 391.7(a) provides the court the discretion to enter a prefiling order which prohibits a vexatious litigant from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed. As Plaintiff is found to be a vexatious litigant, the Court is inclined to grant Defendant’s request for a prefiling order.

Security

At any time until final judgment is entered, a defendant may move the court for an order requiring a plaintiff to furnish security based upon the ground, and supported by a showing, that **plaintiff is a vexatious litigant** and that **there is not a reasonable probability that they will prevail in the litigation against the moving party**. Code of Civil Procedure § 391.1. If, after hearing the evidence upon motion, the court is required to order the plaintiff furnish security upon a determination that plaintiff is a vexatious litigant and that there is no reasonable probability that the plaintiff will prevail in the litigation against the moving defendant. Code of Civil Procedure § 391.3(a). When security that has been ordered furnished is not furnished as ordered, the litigation shall be dismissed as to the defendant for whose benefit it was ordered furnished. Code of Civil Procedure § 391.4.

Defendant argues that there is no reasonable probability that Plaintiff will prevail in the litigation on the following grounds:

1. The action is barred by res judicata;
2. Plaintiff’s public nuisance cause of action fails as a matter of law; and
3. Plaintiff’s action is barred because he failed to present a government claim before filing the suit.

As discussed above, Plaintiff is found to be a vexatious litigant. The Court is persuaded that there is no reasonable probability Plaintiff will prevail in the litigation on the grounds asserted by Defendant and is inclined to order Plaintiff to furnish a security. The Court finds a reasonable basis in granting Defendant’s request for a security in the amount of \$65,000 within 30 days based upon the cost of Plaintiff’s most recently failed suit and is inclined to stay proceedings pending receipt based upon the Court’s inherent power to stay proceedings. See *Bailey v. Fosca Oil Co.* (1963) 216 Cal.App.2d 813, 817 (holding that superior courts have an inherent authority to stay proceedings pending receipt of security when the relevant statutory authority is silent). Should the security not be provided within this time, the Court shall dismiss the action.

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July 10, 2026
Dept. 9
Civil Tentative Rulings

TENTATIVE RULING #11:

**APPEARANCES ARE REQUIRED AT 8:30 A.M. ON FRIDAY, JULY 10, 2026, IN DEPARTMENT NINE
DEFENDANT'S REQUEST FOR JUDICIAL NOTICE IS GRANTED.**

**IF A PARTY OR PARTIES WISH TO APPEAR BY ZOOM, PLEASE CONTACT THE COURT AT (530)
621-5867 AND MEETING INFORMATION WILL BE PROVIDED.**